Residential Lease Agreement

This Lease Agreement is made on 5 February 2023 between Vasatika Mall (the Landlord) and Falguni Bali (the Tenant).

The premises are situated at 55/41, Pillay Path, Rajkot (the Premises).

1. Term and possession

1.1 The Landlord shall let the Premises to the Tenant for a term of 24 months commencing on 14 May 2020.

1.2 Holding over after the term shall be treated as a monthly tenancy at a rent increased by 25%.

1.3 The Tenant shall take possession on 22 April 2021 and may renew this lease for a further 12 months by giving 60 days written notice.

1.4 The Landlord must hand over the Premises in habitable condition together with 24 sets of keys.

2. Rent and deposit

2.1 Late payment shall attract interest at 15% per annum on the overdue amount after 15 days.

2.2 The Tenant shall pay a refundable security deposit of ₹69,000 on 13 August 2020, without interest.

2.3 The Tenant shall pay monthly rent of ₹16,200 on or before the 35 day of each calendar month.

2.4 The Landlord may deduct from the deposit the cost of damage beyond ordinary wear, not exceeding ₹4,40,000.

2.5 The rent shall increase by 15% at each renewal of the lease.

3. Use and maintenance

3.1 The Tenant may keep no more than 36 occupants in the Premises at any time.

3.2 The Landlord may inspect the Premises on 90 hours notice at reasonable times.

3.3 The Tenant shall keep the Premises clean and shall bear routine repairs costing less than ₹7,66,00,000.

3.4 The Landlord shall bear structural repairs and must complete them within 7 days of notice.

3.5 The Tenant shall use the Premises for residential purposes only and must not sublet any part without the Landlord's written consent.

4. Termination

4.1 Either party may terminate this lease by giving 45 days written notice after the first 9 months.

4.2 On termination the Tenant shall vacate the Premises and return all keys within 90 days.

4.3 The Landlord may terminate immediately if the Tenant fails to pay rent for 8 consecutive months.

4.4 The Landlord shall refund the deposit within 15 days after vacant possession, less lawful deductions.

5. Notices

5.1 A notice sent by registered post is deemed received 14 days after dispatch unless the recipient proves otherwise.

5.2 Either Party may change its address for notices by giving 10 days written notice to the other Party.

5.3 Any notice under this Agreement shall be given in writing and delivered to the other Party at its address in Amritsar within 7 days of the event giving rise to it.

5.4 Notices concerning a dispute must quote reference REF-2470 and shall be signed by an authorised signatory.

6. Confidentiality

6.1 On written request a Party shall return or destroy confidential material within 15 days and confirm this in writing.

6.2 Each Party may keep the terms of this Agreement and all non-public information of the other Party confidential for 6 months after termination.

6.3 The Parties must not use confidential information for any purpose other than performing this Agreement.

6.4 A Party may disclose confidential information to its professional advisers if they are bound by equivalent duties of confidence.

7. Liability and indemnity

7.1 The total liability of either Party under this Agreement shall not exceed ₹32,50,000 in any period of 6 months.

7.2 A Party seeking indemnity shall notify the other within 90 days of receiving a claim and may not settle it without consent.

7.3 Neither Party may claim indirect or consequential loss, including loss of profit above 15% of the fees paid.

7.4 Each Party shall indemnify the other against third-party claims arising from its breach of this Agreement, up to ₹3,90,000.

8. Force majeure

8.1 The affected Party must use reasonable efforts to resume performance and shall report progress every 13 days.

8.2 If a force majeure event continues for more than 7 days, either Party may terminate this Agreement by written notice.

8.3 Neither Party shall be liable for delay caused by events beyond its reasonable control, provided it notifies the other within 10 days.

9. Dispute resolution

9.1 Unresolved disputes shall be referred to arbitration seated in Sambalpur under the Arbitration and Conciliation Act, 1996.

9.2 The Parties shall first try to resolve any dispute by negotiation for 10 days before starting any proceeding.

9.3 The arbitral tribunal shall consist of 3 arbitrator(s) and its award is final and binding on the Parties.

9.4 The costs of arbitration shall be shared equally unless the tribunal orders otherwise, and a Party may seek interim relief from the courts at Solapur.

10. Assignment and amendment

10.1 This Agreement is the entire agreement of the Parties and replaces all earlier understandings dated before 19 October 2020.

10.2 Neither Party may assign this Agreement without the prior written consent of the other, which shall not be unreasonably withheld.

10.3 An amendment is effective only if it is in writing and signed by both Parties on or after 7 November 2020.

10.4 If any provision is held invalid the remaining provisions shall continue in full force and effect.

11. Term and possession

11.1 The Landlord shall let the Premises to the Tenant for a term of 11 months commencing on 30 August 2024.

11.2 The Tenant shall take possession on 21 December 2021 and may renew this lease for a further 9 months by giving 30 days written notice.

11.3 The Landlord must hand over the Premises in habitable condition together with 6 sets of keys.

11.4 Holding over after the term shall be treated as a monthly tenancy at a rent increased by 2%.

12. Rent and deposit

12.1 Late payment shall attract interest at 15% per annum on the overdue amount after 10 days.

12.2 The Landlord may deduct from the deposit the cost of damage beyond ordinary wear, not exceeding ₹7,58,00,000.

12.3 The rent shall increase by 20% at each renewal of the lease.

12.4 The Tenant shall pay monthly rent of ₹11,700 on or before the 28 day of each calendar month.

12.5 The Tenant shall pay a refundable security deposit of ₹57,700 on 19 June 2025, without interest.

13. Use and maintenance

13.1 The Tenant shall use the Premises for residential purposes only and must not sublet any part without the Landlord's written consent.

13.2 The Landlord may inspect the Premises on 90 hours notice at reasonable times.

13.3 The Tenant may keep no more than 14 occupants in the Premises at any time.

Signed on 28 May 2025 at Pimpri-Chinchwad.

Landlord: Vasatika Mall

Tenant: Falguni Bali